

HEARING NOTES
(INTERNAL, COUNSEL'S OFFICE)

Matter: ARBITRATION CASE NO. ARB/114/2026

CHRONOLOGICAL HEARING NOTES

INTERNAL HEARING NOTE 1 -- 12.09.2025

S.11 PETITION -- FINAL HEARING

Delhi HC allowed the Section 11 petition without serious contest from the Respondent's side; the Court appointed Mr. Justice (Retd.) N. K. Varadachari as Sole Arbitrator. No observations were made on the merits of the underlying dispute. Client to be advised that the arbitration will now proceed on the timelines to be fixed by the Tribunal.

INTERNAL HEARING NOTE 2 -- 20.09.2025

S.9 PETITION -- HEARING

The Court was persuaded by the certified-value argument and restrained encashment of the Bank Guarantee pending arbitration. Opposing counsel did not seriously dispute the certified figures but argued balance of convenience; the Court was not persuaded on that limb. A strong opening position for the arbitration on the quantum issue.

INTERNAL HEARING NOTE 3 -- 20.10.2025

PROCEDURAL ORDER NO. 1 -- PRELIMINARY MEETING

Terms of reference and fee protocol agreed without difficulty. Both counsel indicated a broadly cooperative approach to timelines at this preliminary stage. Filing schedule for the Statement of Claim confirmed.

INTERNAL HEARING NOTE 4 -- 15.11.2025

STATEMENT OF CLAIM FILED

Statement of Claim filed within the time fixed, running to the full particulars of dealings including the RA Bill certification log and site diary cross-references. Respondent's counsel informally indicated an intention to raise a counterclaim for additional works.

INTERNAL HEARING NOTE 5 -- 10.01.2026

STATEMENT OF DEFENCE AND COUNTERCLAIM FILED

As anticipated, the Respondent has raised a counterclaim for additional cable trenching works and has disputed the certified value of RA Bill No. 7. The counterclaim appears weakly evidenced -- no written instruction is referred to, only a telephonic direction. This should be a focus area in cross-examination.

INTERNAL HEARING NOTE 6 -- 25.02.2026

PROCEDURAL ORDER NO. 3 -- ISSUES SETTLED

List of issues settled by consent. Five substantive issues framed, tracking the pleaded disputes on quantum, delay attribution, enforceability of Clause 22, and the counterclaim. Witness statements to be filed within four weeks; client's Vice President (Contracts) and site engineer to be the Claimant's witnesses.

INTERNAL HEARING NOTE 7 -- 08.04.2026

CROSS-EXAMINATION -- CLAIMANT'S WITNESSES

Ms. Kohli's cross-examination went well; opposing counsel was unable to shake her evidence on the certification register or on the absence of any written instruction for the counterclaimed works. No material admissions made.

INTERNAL HEARING NOTE 8 -- 20.05.2026

CROSS-EXAMINATION -- RESPONDENT'S WITNESS

Respondent's Contracts Manager conceded, under cross-examination, that the Respondent's own equipment mobilisation contributed to the delay at the third substation -- a useful concession on the delay-attribution issue for written submissions.

INTERNAL HEARING NOTE 9 -- 30.06.2026

WRITTEN SUBMISSIONS FILED

Written submissions filed by both sides broadly along the lines discussed with the client. Oral arguments to follow; Tribunal indicated it would reserve the Award after hearing both sides.

INTERNAL HEARING NOTE 10 -- 18.08.2026

AWARD PRONOUNCED

Award substantially in the Claimant's favour: certification figure upheld, delay apportioned 65:35 against the Respondent, counterclaim dismissed in full. Consolidated award of Rs. 2,42,30,000 with interest and costs. Client to be briefed on enforcement options and on the likelihood of a Section 34 challenge by the Respondent.
